

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 21, 2026 TIME: 8:30 A.M.

No. 25CV03379

PORTER et al. v. PAJARO VALLEY HEALTHCARE DISTRICT HOSPITAL CORP.

DEFENDANT’S DEMURRER

The demurrer is overruled. Defendant is ordered to file an answer no later than October 23, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

Plaintiffs are patients of defendant hospital medical group and their personally identifiable information (“PII”) and personal health information (“PHI”) were obtained by the ransomware group Termite in a November 2024 cyberattack and leaked until July 2025; a second group, Sinobi, took 13 gigabytes in August 2025 and leaked that as well. (Consolidated Amended Complaint (“CAC”) ¶¶ 18-21.) Defendant never publicly acknowledged the second breach, and it waited until October 15, 2025 to tell patients that their PII and PHI were in the stolen files. (CAC ¶¶ 5, 21, 55, 62.) Plaintiffs include four patients – Sarinah Porter, Karen Barton, Jessica Chipres, and Phil Reader, and they seek to represent other potential plaintiffs in a class. (CAC ¶¶ 98-105.) Plaintiffs allege ten causes of action for negligence, violation of the California Confidentiality of Medical Information Act, violation of the California Consumer Records Act, unfair competition, breach of contract, breach of implied contract, unjust enrichment, breach of fiduciary duty, breach of confidence and violation of the California Consumer Privacy Act.

Plaintiffs plead actual harm – economic and non-economic -- as a result of these breaches: Plaintiff Porter applied for credit and was told her Social Security number was invalid, two fraudulent credit card purchases were made, and her spam calls and emails increased. (CAC ¶¶ 53-56.) Plaintiff Barton received fraudulent invoices from providers she had never treated with and learned her PII and PHI was on the dark web, which she traces to the breach because it

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involves the same information she gave defendant. (CAC ¶¶ 62, 68-70.) Ms. Chipres and Mr. Reader plead on information and belief, because defendant has not disclosed either breach's scope. (CAC ¶¶ 74-75, 86-87.) All four allege lost time, anxiety, an increased risk of identity theft, and a continuing interest in data defendant still holds on systems "shown to be susceptible to compromise." (CAC ¶¶ 59-61, 72-73, 80-85, 92-97.)

Defendant demurs to each of the ten claims on the grounds they fail to state sufficient facts to support any cause of action. Defendant also argues plaintiffs lack standing. Based on the Court's review of the complaint, when read liberally and in context, plaintiffs' allegations are sufficient to support all claims and the demurrer is therefore overruled.

No. 26CV00447

SIMPSON v. DEBERT

DEFENDANT'S MOTION FOR RECONSIDERATION

The motion is denied.

I. BACKGROUND

Plaintiff Jeff Simpson's second amended complaint ("SAC"), filed April 20, 2026, alleges three causes of action against defendant Charlene DeBert – trespass, encroachment/nuisance, and quiet title. Both parties are self-represented. There is a neighbor dispute; plaintiff alleges that defendant built a fence that encroaches on his land, and trespassed onto his property across his driveway, gate area and leach field. Defendant has claimed ownership of these areas. Defendant has also allegedly resorted to yelling at plaintiff via a surveillance camera, which she later removed, resulting in at least one call for service from the Sheriff's Office.

Defendant argued in her demurrer and motion to strike that plaintiff's trespass cause of action fails because the boundary was not established until a survey, and defendant could not have trespassed on an unknown boundary. Much of her demurrer discussed the process of finding a missing boundary marker and relied on her declaration statements, none of which are found in the four corners of the SAC. She contended the second cause of action for nuisance fails for the same reasons and the entire SAC fails for uncertainty. Her motion to strike sought to strike all references to "visible monuments," punitive damages, emotional distress damages, "willful disregard," "intentional trespass," and defendant's refusal caused survey costs.

The court overruled the demurrer and denied the motion to strike. Defendant now moves for reconsideration on the grounds that the court overlooked Exhibit D to the SAC and its direct